

fer it to the purchaser by their ownership; and equity, as the purchaser had no opportunity of discovering the true state of things, will not allow his title to be impeached. But where there is a power merely, the insufficiency of the personal estate is a condition precedent; and if it did not pre-exist in fact, the power never arose, and the purchaser took nothing by the assumed execution of it.

3. **Case of selling more than the trust requires.** — A purchaser is not bound to ascertain whether *more* is offered for sale than is sufficient to answer the purposes of the trust: for how is the purchaser to know what exact sum is wanted, without investigating the accounts? And if the sale be by auction the trustees cannot tell *à priori* what the property will fetch. Besides, the trustees are entitled, as incident to their office, to raise their costs and expenses (*b*).

4. **Pierce v. Scott.** — But where a testator directed on the insufficiency of his personal estate a sale in the first instance of estate A., and, should that not answer the purpose, then of estate B., and the trustees, *fifteen* years after the testator's death, contracted for the sale of B. first, and then filed a bill for specific performance, alleging the existence of debts, and that A. was already in mortgage, or otherwise charged to the full value, the Court, considering it was unlikely that creditors would have lain by for so many years, and that the non-existence of debts might therefore be suspected, and that what was ground for suspicion might be deemed notice to a purchaser, determined against the title (*c*).

Secondly. Supposing the sale to be proper, is the purchaser bound to see to the *application* of his purchase-money? ¹

(*b*) Spalding v. Shalmer, 1 Vern. 301; Thomas v. Townsend, 16 Jur. 736.

(*c*) Pierce v. Scott, 1 Y. & C. 257.

¹ *Application of the purchase-money.* — If the trust is general to pay debts, the purchaser need not see to the application of the purchase-money; Goodrich v. Proctor, 1 Gray, 570; Potter v. Gardner, 12 Wheat. 498; Hauser v. Shore, 5 Ired. Eq. 357; Laurens v. Lucas, 6 Rich. Eq. 217; or if it is to pay debts and legacies; Andrews v. Sparhawk, 13 Pick. 393; Dewey v. Ruggles, 25 N. J. Eq. 35; Sims v. Lively, 14 B. Mon. 435; Grant v. Hook, 13 S. & R. 259; or to pay debts and use balance in a certain way; Stall v. Cincinnati, 16 Ohio St. 169. But if certain debts or legacies are to be paid from the proceeds of a